

25STLC01133 25STLC01133

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TENTATIVE RULING:

Plaintiff State Farm Mutual Automobile Insurance Company's Motion for Judgment on the Pleadings against Defendant Medardo Cruz Guardado is denied.

Analysis:

On February 13, 2025, Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed this action for automobile subrogation against Defendant Medardo Cruz Guardado ("Defendant"). Defendant filed an Answer on April 25, 2025. On March 5, 2026, the Court granted Plaintiff's Motion to Deem Requests for Admission Admitted and Request for Monetary Sanctions against Defendant. (Minute Order, 03/05/26.)

Plaintiff filed the instant Motion for Judgment on the Pleadings against Defendant on April 10, 2026. The Motion was served on Defendant through Attorney Edward S. Kent, Esq. by first-class and electronic mail on the same day. No opposition to the Motion has been filed to date.

Discussion

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60

Cal.App.4th 1205, 1216.) Where the moving party is the plaintiff, judgment on the pleadings may be granted on the basis that “that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (Barker v. Hull (1987) 191 Cal.App.3d 221, 236.)

While a statutory motion for judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must be accompanied by a meet and confer declaration, there is no such requirement for a motion for judgment on the pleadings brought pursuant to the common law. (See Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed].) The instant Motion is supported by a meet and confer declaration. (Motion, Ahearn Decl., ¶2 and Exhibit 1.)

The instant Motion is accompanied by a request for judicial notice of the Complaint, the Answer, the Motion to Deem Admissions, and the Court’s Order granting the motion. (RJN, ¶¶ 1-4, Exs. A-D.) The Court takes judicial notice of the contents of the Complaint and Answer, as being the pleadings of the parties in this action, not for the truth of those matters. (Evid. Code, § 452, subd. (d); *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1560–1569.) To the extent set forth below, the Court takes judicial notice of the admissions pursuant to Cal. Evidence Code section 452, subdivision (d). (Cal. Evid. Code, § 452, subd. (d); see also *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549 [holding that the court may take judicial notice of matters that cannot be reasonably controverted, including “admissions and concessions.”].)

“[I]n order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted...The same is true of evidentiary admissions or concessions.” (*Columbia Casualty Co. v.*

Northwestern Nat. Ins. Co. (1991) 231 Cal.App.3d 457, 468.)

The admissions deemed by Defendant do not support judgment on the pleadings. As relevant here, Defendant is deemed to have admitted that Defendant failed to drive with reasonable care, that Defendant's driving was the sole cause of the accident with Plaintiff's insured, that Defendant was 100% at fault in causing the collision, and, as a result of the collision, Defendant caused the Plaintiff's insured to incur damages of at least \$28,344.90, and that Plaintiff, the insurer, has been damaged in that sum, which it paid to its insured. (Motion, RJN, Exh. 2, at Nos. 2, 3, 5, 7-8.) Plaintiff argues that these deemed admissions should be treated as "judicial admissions" that remove any issues raised by Defendant under a general denial or any affirmative defenses in the Answer, warranting judgment on the pleadings in Plaintiff's favor.

The Court finds judgment on the pleadings not warranted. The deemed admissions do not remove the affirmative defense that Plaintiff has failed to mitigate damages. (Motion, RJN, Ex. 1 (Answer), p. 2:6-11.) The admissions address the amount of damage caused but not whether Plaintiff could have avoided any portion of the damages through reasonable efforts. The RFAs include an omnibus admission that all of Defendant's affirmative defenses "lack merit and evidentiary support." (Motion, RJN, Exh. 2 at No. 9.) But this is a wholly legal conclusion and not a proper request for admission or matter for judicial notice. (See Cal. Civ. Proc. Code § 2033.010 (admissions must pertain to "the truth of specified matters of fact, opinion relating to fact, or application of law to fact"); Cal. Evid. Code, §452(h) (notice may be taken of "facts and propositions not reasonably subject to dispute"). There are no "facts" in an admission that defenses "lack merit and evidentiary proof." Accordingly, at least one affirmative defense remains at issue and judgment on the pleadings is not appropriate.

Further, the Court does find the deemed admissions used appropriately here. "[A]fter a matter is deemed admitted, the scope and effect of the admission must be determined by the trial court." (Fredericks v. Filbert Co. (1987) 189 Cal. App. 3d 272, 278) (citation omitted).) The Court's discretion in this area includes the determination whether the opportunity to present additional evidence may provide relevant context as to the meaning and scope of the deemed admissions. In this respect, courts have recognized a difference in the use of deemed admissions in a motion for judgment on the pleadings and in a

motion for summary judgment or trial, suggesting caution in the former context. As the court observed in *Columbia Casualty Co.*, "The notice of motion for judgment on the pleadings is thus notice to be prepared to argue legal sufficiency of allegations; it is not notice to come forward with factual support for what is alleged. This process recognizes that there may in fact be evidence which challenges the truth of the allegations of the pleading under attack but defers the challenge until a motion for summary judgment or a trial." (*Id.* at 469.) Similarly, "[t]he court must have discretion to admit evidence to elucidate and explain an admission, because the admission of a fact does not always reflect the party's reasonable understanding of that fact." (*Fredericks v. Filbert Co.* (1987) 189 Cal. App. 3d 272, 278.) The Court declines to determine at this time that Defendant should not be afforded the opportunity to attempt to proffer evidence to elucidate and explain the meaning of State Farm's broadly worded requests for admission, and for that additional reason does not grant them conclusive effect in a motion for judgment on the pleadings.

Conclusion

Plaintiff State Farm Mutual Automobile Insurance Company's Motion for Judgment on the Pleadings against Defendant Medardo Cruz Guardado is denied.

Moving party to give notice.